

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 04/02/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10
Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C22-00922 CASE NAME: TREK HOLDINGS VS. CAREPATROL FRANCHISE HEARING ON SUMMARY MOTION JUDGMENT/ADJUDICATION FILED BY: <u>*TENTATIVE RULING:*</u>

Before the Court is Cross-Defendant Trek Holdings LLC and Cross-Defendant Kevin Pickolick (collectively, "Cross-Defendants")'s Motion for Summary Judgment or in the alternative Summary Adjudication ("Motion"). The Motion relates to Cross-Complainant CarePatrol Franchise Systems, LLC ("Cross-Complainant" or "CarePatrol")'s Cross-Complaint for declaratory relief.
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As an initial matter, the Court notes that Cross-Complainant has failed to comply with the requirements of the Code of Civil Procedure and the California Rules of Court as to their response to Cross-Defendants' separate statement.

The separate statement "is an indispensable part of the summary judgment or adjudication process" because it plainly identifies factual issues and allows the trial court to determine whether a trial is required to establish those facts and resolve the dispute. (*Whitehead v. Habig* (2008) 163 Cal.App.4th 896, 902; see *Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 73.) "Opposition separate statements must cite to facts and evidence for the evidence to be considered by the court." (*Bacoka v. Best Buy Stores, L.P.* (2021) 71 Cal.App.5th 126, 131, fn. 1.)

CCP Section 437c(b)(3) requires the opposing party to indicate whether they agree or disagree that a fact is undisputed. If disputed, the opposing party must set forth a reference to supporting evidence. Failure to comply may be grounds for the court to grant the motion. Similarly, CRC 3.1350(f) requires the opposing party to "unequivocally state whether each fact is 'disputed' or 'undisputed'." If disputed the opposing party must describe the nature of the dispute and describe the evidence that supports that position by citing to exhibit, title, page and line numbers. Here, Cross-Complainant frequently purported to deny facts without citation to any evidence, or made general reference to entire exhibits without specificity. That is inadequate and those "disputed" facts are functionally undisputed.

For the following reasons, Cross-Defendants' motion for summary judgment is **granted**.

Request for Judicial Notice

Cross-Defendants' unopposed request for judicial notice is **granted**, subject to limitations. (Evid. Code §§ 452, 453; *People v. Franklin* (2016) 63 Cal.4th 261, 280 ["A court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments."] [quoting *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914].)

Legal Standard

Code of Civil Procedure ("CCP") §§ 437c(o)(1) and 437c(p)(2) provide the relevant legal standard for deciding the Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of

material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) The scope of the defendant's initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Analysis

This is a business dispute related to a Master Franchise Representative Agreement (the "MFRA") entered into between Plaintiff and Cross-Defendant Trek Holdings LLC and Defendant and Cross-Complainant CarePatrol Franchise Systems LLC on April 30, 2012.

Cross-Defendants move for summary judgment (or in the alternative summary adjudication) on Cross-Complainant's two causes of action for declaratory relief on several grounds. Cross-Complainant's first cause of action for declaratory relief has three separate issues on which CarePatrol seeks a judicial declaration, and the second cause of action for declaratory relief has a single issue. The Court takes each issue in turn.

ISSUE 1: Because there is an actual case and controversy regarding whether or not Trek breached Section 5.B of the MFRA by failing to meet its Minimum Quota, CarePatrol seeks a declaration that Trek breached the MFRA by failing to meet the Minimum Quota.

As a threshold issue, Cross-Defendant argues that this claim is time-barred under section 22D of the MFRA which requires all claims arising out of the agreement to be brought within two years of the time that the claim first was discovered or reasonably should have been discovered. In opposition, CarePatrol argues that "[e]ven if the Court were to disregard any shortfalls prior to the last two years of the MFRA, Plaintiff still failed to meet the applicable quotas during that period." (Opp. at 9:12-13.)

That said, Cross-Defendants have adduced evidence that Cross-Complainant's failure to comply with the federal and state disclosure laws, including maintaining an active Franchise Disclosure Document ("FDD") precluded Trek from opening franchises, each year as a matter of law. (SUF 13, 17-27, 30.)

Specifically, Section 5C of the MFRA provides "[CarePatrol] will, at its own expense, comply with all franchise registration and disclosure laws (including preparing and registering, if required, the [FDD] and Master Franchise Representative Agreements)." (SUF 13.) Section 5B of the MFRA also provides: "If economic, financial or internal [CarePatrol] issues inhibit [Trek]'s ability to meet the minimum performance requirements, [CarePatrol] will reasonably modify the performance schedule in Exhibit B." (SUF at ¶ 12.)

Corporations Code section 31110 makes it an offense to sell franchises without proper registration. (Corp. Code § 31110.) It is undisputed that this precluded Trek from engaging with any prospective franchisees in any meaningful way during what they describe as "FDD dark periods." (SUF 50.) Cross-Defendants have adduced evidence that the specific days that CarePatrol could not sell by law were as follows: the Expiration Date of April 22, 2013 to the Effective Date of May 16, 2013 (16 Days); the Expiration Date of April 23, 2014 to the Effective Date of May 12, 2014 (19 Days); the Expiration Date of April 20, 2015 to the Effective Date of July 21, 2015 (92 Days); the Expiration Date of April 20, 2016 to the Effective Date of May 18, 2016 (28 Days); the Expiration Date of April 20, 2017 to the Effective

Date of October 10, 2017 (173 Days); the Expiration Date of April 20, 2018 to the Effective Date of October 9, 2018 (172 Days); the Expiration Date of April 22, 2019 to the Effective Date of July 1, 2019 (70 Days); the Expiration of April 20, 2020 to the Effective Date of September 18, 2020 (151 Days); the Expiration Date of April 20, 2021 to the Effective Date July 16, 2021. (Exhibit 15 at p. 119.)

During the last two-year period of the MFRA, Trek's performance was entirely barred by law for 271 days spanning a total of 10 months. (SUF 30.) Cross-Defendants argue that Cross-Complainant's continuous breach precludes its claim for breach of contract against Trek. (Motion at 13:20-14:1 [citing cases].)

"[T]he elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff." (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) A party's failure to perform a condition precedent will preclude an action for breach of contract. (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 592; *Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1192.) "Where one party's obligation is dependent on the prior proper performance of the other party, and that other party does not perform, the obligation is excused." (*Alki Partners*, at p. 1192.) Here, it is undisputed that Trek could not sell franchises for a considerable portion of the last two years of the MFRA, making it impossible for them to meet their quota as a practical matter.

Even if Trek's obligations were not wholly excused by CarePatrol's lack of performance, CarePatrol failed to give Trek notice and opportunity to cure as required by the MFRA. (SUF 10 [Section 14B of the MFRA provides: "In the event of default, Franchisor will notify Master Franchise Representative in writing of the breach, and will provide Master Franchise Representative 60-days notice to correct the breach. Failure to correct the breach within the 60-day period shall be grounds for immediate termination of this Agreement on written notice."].) It is undisputed that at no time before the Notice of Nonrenewal did CarePatrol give Trek a required Notice of Breach. (UMF 45.)

Cross-Defendants have met their initial burden with respect to Cross-Complainant's first declaratory judgment issue. Cross-Complainant has failed to meet their responsive evidentiary burden. Accordingly, the Motion is granted as to this issue.

ISSUE 2: Because there is an actual case and controversy regarding whether or not Trek breached Section 5.B of the MFRA as modified by the CarePatrol's offer to reduce the quota by ten, CarePatrol seeks a declaration that Trek breached the MFRA by failing to meet the modified Minimum Quota of ten franchised locations before the date the MFRA expired.

Cross-Defendants move for summary adjudication on this issue on the grounds that the parties never agreed to the modification and therefore the contract term Cross-Complainant seeks to enforce does not exist.

A threshold element of breach of contract is existence of the contract. (See *Oasis West Realty*, supra, at p.821.) Here, the evidence is undisputed that the MFRA provides for an Annual Franchise Quota of four franchises per year. (SUF 7–8.) It is undisputed that the parties never modified this term. (SUF 47–48.) On October 13, 2021, Cross-Complainant's Notice of Nonrenewal purported to unilaterally amend the Annual Franchise Quota by requiring that Trek open ten franchises in the following six months. (SUF 8, 43–44.) This Adjusted Quota is the "obligation" for which Cross-Plaintiff seeks declaratory relief. (Cross-Compl. at ¶ 31.) However, it is undisputed that Trek did not agree to this modification. (SUF 47, 48.) Indeed, it is undisputed that the MFRA was never modified and that Trek rejected this demand. (SUF 47; Cross-Compl. at ¶¶ 24, 26.) In fact, by its own terms, Cross-

Complainant characterizes the issue as “an **offer** to reduce the quota by ten.”

In the absence of an enforceable contract term, there is no actual controversy between the parties. (CCP § 1060 [an action for declaratory relief is authorized only when an actual controversy exists].)

“‘[S]ection 1060 does not require a breach of contract in order to obtain declaratory relief, only an ‘actual controversy.’ Declaratory relief pursuant to this section has frequently been used as a means of settling controversies between parties to a contract regarding the nature of their contractual rights and obligations.’” (*Osseous Technologies of America, Inc. v. Discovery Ortho Partners LLC* (2010) 191 Cal.App.4th 357, 365 [quoting *Meyer v. Sprint Spectrum LP* (2009) 45 Cal.4th 634, 647].) Declaratory relief operates prospectively. (*Id.* at p. 366.)

Cross-Complainant cannot establish the basis for declaratory relief with respect to this issue. Cross-Defendants have met their initial burden with respect to Cross-Complainant’s second declaratory judgment issue. Cross-Complainant has failed to meet their responsive evidentiary burden. Accordingly, the Motion is granted as to this issue.

ISSUE 3: Because there is an actual case and controversy regarding whether or not Trek breached Section 5.B of the MFRA as modified by CarePatrol’s offer to renew if Trek sold ten franchises before the expiration date, CarePatrol seeks a declaration that CarePatrol was under no obligation to renew the MFRA.

Cross-Defendants argue that Cross-Complainant cannot show that Trek was in breach because CarePatrol’s own acts excused Trek’s performance and/or bar CarePatrol from claiming Trek was in breach.

As discussed at length above, it is undisputed that CarePatrol’s claims prior to the period concluding April 30, 2020 are time-barred; that CarePatrol repeatedly breached its obligation to be FDD compliant; that California Civil Code section 1511 barred Trek from sales while CarePatrol was non-compliant; that CarePatrol failed to provide notice and an opportunity to cure; and that the parties never agreed to CarePatrol’s purported unilateral increase in Trek’s Annual Franchise Quota. It is also undisputed that the MFRA was never modified in any way. (SUF 48.)

Cross-Defendants have met their initial burden with respect to Cross-Complainant’s third declaratory judgment issue. Cross-Complainant has failed to meet their responsive evidentiary burden. Accordingly, the Motion is granted as to this issue.

Because Cross-Defendants have met their burden with respect to the three issues asserted in Cross-Complainant’s first cause of action for declaratory judgment, they are entitled to summary adjudication of that claim.

ISSUE 4: Because there is an actual case and controversy regarding whether or not CarePatrol properly extended time pursuant to section 20026 of the California Franchise Relations Act and California Business and Professions Code section 20000, CarePatrol seeks a declaration that CarePatrol properly extended time to Trek pursuant to the act, and that Trek refused to accept renewal of the MFRA through lack of action, and later by noticing CarePatrol that Trek had no intention of renewing.

Finally, Cross-Defendants move for summary adjudication on Cross-Complainant’s second cause of action for declaratory relief on the grounds that CarePatrol did not, in fact, extend time under the MFRA.

Here, it is undisputed that the MFRA was never modified in any way, including by any extension. (SUF

48.) In opposition, CarePatrol argues that it did, in fact, offer renewal of the MFRA. (Opposition at § VI (E).) However, this contention is not supported by any evidence. As a consequence, Cross-Complainants have failed to create a genuine dispute of material fact with respect to this issue.

Cross-Defendants have met their initial burden with respect to Cross-Complainant's fourth declaratory judgment issue. Cross-Complainant has failed to meet their responsive evidentiary burden. Accordingly, the Motion is granted as to this issue.

Because Cross-Defendants have met their burden with respect to the issue asserted in Cross-Complainant's second cause of action for declaratory judgment, they are entitled to summary adjudication of that claim. And because they have met their burden with respect to both Cross-Complainant's first and second causes of action for declaratory judgment, Cross-Defendants are entitled to summary judgment with respect to Cross-Complainant's entire Cross-Complaint.

Objections to Evidence

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).) Here, there were none.

2. 9:00 AM CASE NUMBER: C24-01854

CASE NAME: REGINALD CANNON VS. MELISSA KATZ

***HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE WITH 1ST AMENDED NOTICE OF DEPOSITION**

FILED BY: CANNON, REGINALD R.

TENTATIVE RULING:

In view of the hundreds of pages filed by the parties relating to the issues raised in this motion and opposition, the "primary" assigned attorney for each side **shall appear** via Zoom or in person to discuss appointment of a Discovery Referee.

3. 9:00 AM CASE NUMBER: C25-02554

CASE NAME: SHARI PEDERSEN VS. ANTIQUE CARRIAGE ASSOCIATION

***HEARING ON MOTION IN RE: CHANGE VENUE**

FILED BY: PEDERSEN, SHARI

TENTATIVE RULING:

Unopposed, Motion **granted**. Yolo County is the proper venue for this case. Plaintiff shall take all actions necessary and pay transfer and all other fees to accomplish the transfer within 30 days from this date.

4. 9:00 AM CASE NUMBER: C25-03051

CASE NAME: COLLEEN SULLIVAN VS. CONTRA COSTA WATER DISTRICT

HEARING IN RE: RELIEF TO SUBMIT GOVERNMENT CLAIM

FILED BY:

TENTATIVE RULING:

Petitioner Colleen Sullivan brings this petition against Contra Costa Water District, seeking an order pursuant to Government Code section 946.6, relieving her from the bar on suit against a public

entity where plaintiff has failed to comply with applicable claim procedures. The petition is **granted** for the reasons discussed below.

I. Background

On March 28, 2025 petitioner Colleen Sullivan was injured while walking on a sidewalk in Walnut Creek. (Petition, 3:6-8.) She stepped on a broken and cracked water meter cover which allegedly caused her to fall. (*Ibid.*) Petitioner broke her wrist and the left side of her body was bruised. (*Ibid.*) She retained counsel in May 2025. (*Id.* at 3:8-9.) Counsel submitted a claim to the City of Walnut Creek on behalf of petitioner. (Declaration of John A. Holman in Support of Petition, hereinafter “Holman Decl.,” Ex. A.)

In early June, the City of Walnut Creek rejected the claim and informed counsel that it was not the responsible public agency as the water meter covers were the property of Contra Costa Water District (“District”). The Municipal Pooling Authority of Northern California, Walnut Creek’s claims administrator, forwarded the claim to the Contra Costa Water District, copying petitioner’s counsel. (Holman Decl., Ex. C.) On June 16th, Lisa Norman, an investigator for petitioner’s counsel, contacted the District requesting documentation related to the repair of the broken water meter cover. (Petition, 3:17-20.) Norman later spoke to Michelle of the Contra Costa Water District who acknowledged the accident, location and injuries. (Declaration of Lisa Norman in Support of Petition, hereinafter “Norman Decl.,” ¶¶2-8.)

In response to the telephone call with Norman, Michelle Hulse, Risk Management Officer for the District, sent counsel a letter on July 14th, enclosing a government claim form and instructing petitioner to submit the completed form back to “the undersigned.”

On October 9, 2025, counsel sent back the claim form to Contra Costa Water District, acknowledging the claim was “a few days late,” but also discussing the actual notice provided to the District on multiple occasions and stating a petition would be filed with the Court if the claim were rejected for lack of timeliness.

Five days later, on October 14, 2025, the District rejected the claim because it was late. The rejection letter stated, “[y]our only recourse at this time is to apply, without delay, to Contra Costa Water District for leave to present a late claim. (See Sections 911.4 to 912.2, inclusive, and Section 946.6 of the Government Code.) Under some circumstances, leave to present a late claim will be granted. (See Section 911.6 of the Government Code.)”

Petitioner filed this action two days later, on October 16, 2025.

II. Standard

Under the Government Claims Act, a plaintiff bringing suit for monetary damages against a public entity or employees thereof must first present a claim to the public entity which must be acted upon or deemed rejected by the public entity. (Gov. Code, §§ 945.4, 950.2, 950.6(a).) The time for presenting a claim for personal injury is six months. (Gov. Code, § 911.2(a).) When such a claim is not presented within that time, “a written application may be made to the public entity for leave to present that claim.” (Gov. Code, § 911.4 (a).) The application “shall state the reason for the delay in presenting the claim” and “[t]he proposed claim shall be attached to the application.” (Gov. Code, § 911.4 (b).)

If the public entity denies the application for permission to file a late claim, the plaintiff may file a civil petition for relief from section 945.4's requirement of timely claim presentation prior to suit. (Gov. Code, § 946.6.) The petition must be filed within six months after the application to the

public entity is denied or deemed to be denied. (Gov. Code, § 946.6(b).) The petition must show: (1) that an application was made to the public entity under section 911.4 and was denied or deemed denied; (2) the reason for failure to timely present the claim to the public entity within the time limit specified in section 911.2; and (3) the information required by section 910. (Gov. Code, § 946.6(b).)

The Court is required to relieve petitioner from claim filing requirements if it finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed one year after the incident, and was denied or deemed denied, and that the failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect. (Gov. Code, § 946.6 (b)-(c).)

Section 946.6 is a remedial statute intended to provide relief from technical rules that otherwise provide a trap for the unwary claimant. Accordingly, it is construed in favor of relief whenever possible. In order to implement this policy, any doubts should be resolved in favor of granting relief. (*Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270, 275-276.)

III. Discussion

Petitioner seeks relief from the claims filing requirements on the ground that her counsel “believed, either mistakenly or correctly, that the subsequent government tort claim was redundant and unnecessary because the Contra Costa Water District received the original government tort claim from the City of Walnut Creek when the claim was tendered in June 2025.” (Declaration of John A. Holman in Support of Petition, hereinafter “Holman Decl.,” ¶17.) Further, the evidence indicates the District received actual notice from several sources, including by telephone call from petitioner herself, by a telephone call from the investigator working for petitioner’s counsel, and from written correspondence by the Municipal Pooling Authority.

The District responds that petitioner fails to meet her burden to show mistake, inadvertence, surprise, or excusable neglect. Notably, the District does not dispute that the October 9, 2025 correspondence qualifies as a “a written application” to submit a late claim pursuant to Government Code, section 911.4. Accordingly, although the claim was “returned” as being submitted later than six months after the incident, and although no official denial was issued, the claim is nevertheless deemed denied. (Gov. Code, § 911.6 (c).)

The grounds for granting the relief requested in an application to a public entity for leave to file a late claim are liberally applied. Notably, of the various statutory grounds for relief, only neglect is qualified by the adjective “excusable.” (*Shaddox v. Melcher* (1969) 270 Cal.App.2d 598, 601.) The Holman Declaration shows counsel was mistaken because he “believed” the subsequent tort claim was redundant and unnecessary” based on the earlier “tender” by the Municipal Pooling Authority. While the Court acknowledges the close question of whether counsel acted reasonably upon receiving notice in mid-July about proper presentation requirements, it resolves the question in petitioner’s favor in light of the remedial nature of Government Code, section 946.6.

When counsel has given actual notice to the public entity but has not properly presented a timely claim, the policy of the presentation requirement has been satisfied. (See *Bettencourt v. Los Rios Cmty. Coll. Dist.* (1986) 42 Cal.3d 270, 279.)

The Court finds that petitioner acted as a reasonably prudent person would have acted under the same or similar circumstances, and that she has shown mistake, surprise, inadvertence, or excusable neglect by a preponderance of the evidence. Accordingly the petition must be granted.

5. 9:00 AM CASE NUMBER: MSC20-01888

CASE NAME: BROWN VS. OUTREACH

*HEARING ON MOTION IN RE: ORDER FINDING ITS SETTLEMENT WITH DOUGLAS BROWN AND GLENDA BROWN TO BE IN GOOD FAITH

FILED BY: GENERATIONS CHURCH OF PLEASANT HILL

TENTATIVE RULING:

Unopposed by Outreach or any other interested party. **Motion granted.** The settlement between Plaintiffs Brown and Cross-Defendant Generations Church of Pleasant Hill was in “good faith” pursuant to CCP 877.6 and *Tech-Bilt v. Woodward Clyde* (1985) 38 Cal.3d 488. All claims included in the complaint (Browns v. Outreach) and the cross-complaint (Outreach v. Generations) are hereby **dismissed**.

6. 9:00 AM CASE NUMBER: MSC21-00076

CASE NAME: VALDIVA VS. AYALA

*HEARING ON MOTION IN RE: ENTRY OF FINAL JUDGEMENT

FILED BY:

TENTATIVE RULING:

Before the Court is Plaintiff Adriana Valdivia’s Motion for Entry of Final Judgment (“Motion”).

Plaintiff’s Motion is **denied** for the reasons set forth below.

Background Procedure

Plaintiff filed the original complaint for partition and related claims on January 15, 2021. The Court held a bench trial in June 2023, with an additional hearing on October 11, 2023. Thereafter, on January 12, 2024, the Court issued an Interlocutory Judgment. The Interlocutory Judgment indicated, in relevant part, that Plaintiff was entitled to partition of the real property located at 935 Kilkenny Way, Pinole, CA (the “Property”). The Court determined that the manner of partition would be determined after Plaintiff and Defendant had an “opportunity to meet and confer with each other as to whether Defendant will purchase Plaintiff’s interest or whether the property will be ordered sold on the open market.”

On February 29, 2024, Defendant filed a notice of appeal. The Court of Appeal affirmed the Court’s Interlocutory Judgment. The Petition to the California Supreme Court was denied. A remittitur was issued on September 16, 2025.

Plaintiff now moves for a Final Judgment to be entered even though the Property has not been sold, nor has a procedure for selling the Property been finalized. Defendant opposes the Motion as being premature.

Analysis

“A judgment is the final determination of the rights of the parties in an action or proceeding.” (Code of Civ. Proc. § 577.) “The general test for determining whether the judgment is final is ‘that where no issue is left for future consideration except the fact of compliance or noncompliance with the terms of the first decree, that decree is final, but where anything further in the nature of judicial action on

the part of the court is essential to a final determination of the rights of the parties, the decree is interlocutory.” (*Bakewell v. Bakewell* (1942) 21 Cal.2d 224, 227 quoting *Lyon v. Goss* (1942) 19 Cal.2d 659.)

“It is well established that there can be but one judgment in an action as between the same parties and that is a judgment which determines all matters in controversy between them in the action.” (*Pastor v. Younis* (1965) 238 Cal.App.2d 259, 264.)

The Proposed Final Judgment submitted by Plaintiff does not meet the standards for a final judgment. There are several issues left unresolved and which would still require Court action. For example, the proposed final judgment notes that if the parties cannot agree on a Realtor to list and sell the Property that the Court shall appoint a Realtor upon ex parte application. (¶ 2.) Elsewhere, it notes that if the parties refuse to sign certain documents that the Court should “appoint an elisor” to sign on their behalf. (¶¶ 9, 10.)

The Proposed Final Judgment does not represent a “final determination of the rights of the parties,” but instead appears to be a proposed roadmap for proceeding with the sale of the Property which will ultimately result in a final judgment once the Property is sold and the assets are available for distribution.

Actions for partition are governed by extensive procedures set out in Code of Civil Procedure section 872.010, et seq. “If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property.” (Code Civ. Pro., §872.720(a).) Once that judgment is entered, further determinations must be made through additional interlocutory judgments, including whether to physically divide the property or achieve partition through sale (Code Civ. Pro. § 872.820, *Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 597), and appointment a referee or a receiver to administer the sale of the property. (Code Civ. Pro., §873.010.)

While this Court’s Interlocutory Judgment determined the interests of the parties, it did not determine the method of partition. It indicated that the “manner of partition” would be determined after the parties had an opportunity “to meet and confer with each other as to whether Defendant will purchase Plaintiff’s interest or whether the property will be ordered sold on the open market....”

Based on the papers, it appears clear that the Parties cannot agree on a procedure for moving forward. It is clear, however, that no real efforts have been made toward Defendant purchasing Plaintiff’s interest in the Property. As such the Court agrees that this matter should move swiftly toward the sale of the Property so the case can be resolved in its entirety and a final judgment issue. As such, the Court is inclined to appoint a referee to proceed with the sale of the Property.

The Court notes that there is a CMC scheduled for April 15, 2026. The Parties and the Court can discuss the additional steps and procedures for efficiently selling the Property and resolving this matter at that CMC. The Parties should meet and confer beforehand to determine if they can agree to a referee. If not, the Court will move forward with appointing one.

Conclusion

Plaintiff’s Motion for Entry of Final Judgment is **denied**. The parties should be prepared to discuss the procedures for moving forward with the sale at the CMC.

7. 9:00 AM CASE NUMBER: MSC22-00438

CASE NAME: GODFREY VS. DENARD

*HEARING ON MOTION IN RE: TO SET ASIDE ORDER UNDER CCP 473 (B)

FILED BY: GODFREY, LAVON

TENTATIVE RULING:

Denied. Plaintiff has set forth no valid legal basis for his failure to follow **published and established** procedures for Law and Motion matters in this Court.

Law & Motion

Add On

8. 9:00 AM CASE NUMBER: C22-00922

CASE NAME: TREK HOLDINGS VS. CAREPATROL FRANCHISE

HEARING ON SUMMARY MOTION JUDGMENT/ADJUDICATION

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant CarePatrol Franchise Systems, LLC and Defendant Best Life Brands, LLC (collectively, "Defendants") Motion for Summary Judgment or in the alternative Summary Adjudication ("Motion"). The Motion relates to Plaintiff Trek Holdings LLC and Plaintiff Kevin Pickolick (collectively, "Plaintiffs")'s First Amended Complaint for (1) breach of written contract; (2) tortious interference with contract and economic relations; and (3) negligent interference with contracts and economic relations.

As a threshold issue, Defendants' notice is fatally defective.

In order to move for summary adjudication, the party moving must specify in its notice of motion and motion the claim, causes of action, or issues it is moving on. (California Rules of Court, rule 3.1350 (b).) A notice of motion must state the "grounds upon which it will be made." (*Homestead Savings v. Superior Court* (1986) 179 Cal.App.3d 494, 499 [citing Code Civ. Proc. § 1010].) The court has no power to adjudicate others. (*Maryland Cas. Co. v. Reeder* (1990) 221 Cal.App.3d 961, 974 n. 4; *Homestead, supra*, 179 Cal. App. 3d at p. 499.) A party does not waive any requirement of notice for a subissue that was not set forth in the notice by responding to the argument. (*Homestead, supra*, 179 Cal.App.3d at p. 499.) "In the case of a motion for summary adjudication, the motion must at least identify the specific issues or subissues to be adjudicated." (*Id.*)

"A motion for summary adjudication tenders only those issues or causes of action specified in the notice of motion, and may only be granted as to the matters thus specified." (*Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, 743-744.) "The movant must 'state[] specifically in the notice of motion and ... repeat[], verbatim, in the separate statement of undisputed material facts,' 'the specific cause of action, affirmative defense, claims for damages, or issues of duty' as to which summary adjudication is sought." (*Id.* at 744.)

Here, Defendants' Notice of Motion fails to identify any specific issue, claim or defense it seeks summary adjudication of. Instead, the notice states that "summary judgment is warranted as a matter of law" on the basis of four separate factual assertions, none of which are tied to a specific cause of action in the First Amended Complaint.

Furthermore, even if the Notice of Motion were not fatally defective, Defendants' separate statement also fails to comply with California Rules of Court, Rule 3.1350.

On a motion for summary adjudication, the separate statement must tie each "undisputed material fact" to the particular claim, defense or issue sought to be adjudicated. (Cal. Rules of Ct, Rule 3.1350(b).) Specifically, California Rules of Court, Rule 3.1350(b) states:

"If made in the alternative, a motion for summary adjudication may make reference to and depend on the same evidence submitted in support of the summary judgment motion. If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts."

Here, although the Defendants purport to move against each of Plaintiffs' three separate causes of action (although as noted above, this is not set forth in the Notice of Motion), the separate statement does not tie each "undisputed material fact" to the specific cause of action to be adjudicated. Instead, Defendants provide a list of "undisputed material facts" that purport to apply to all causes of action on which they seek summary adjudication.

When multiple causes of action, issues or defenses are presented for summary adjudication in one motion, each cause of action, issue or defense to which the motion is directed must have a separate section heading indicating the issue number and specifying the issue. (Cal. Rules of Ct., Rule 3.1350(d).)

Specifically, California Rules of Court, Rule 3.1350(d) states: "(1) The Separate Statement of Undisputed Material Facts in support of a motion must separately identify: [¶] (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and [¶] (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion."

This procedural deficiency makes it difficult for the court to efficiently resolve the motion, as "[t]he parties' separate statements 'are intended to permit the judge to determine quickly whether the motion is supported by sufficient undisputed facts. If the opposing statement disputes an essential fact alleged in support of the motion, the judge merely has to review the evidence cited in support of that fact. This saves the judge from having to review all the evidentiary materials filed in support of and in opposition to the motion.'" (*St. Paul Mercury Ins. Co. v. Frontier Pac. Ins. Co.* (2003) 111 Cal.App.4th 1234, 1248.)

It is within the trial court's discretion to deny a summary judgment motion when the moving party fails to comply with the separate statement requirement. (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1189; Code Civ. Proc. § 437c, subdivision (b)(1) ["The failure

to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion."]

Because both the Notice of Motion and the Separate Statement are procedurally defective as described above, Defendants' motion is **denied**.

Law & Motion
Add On 2

9. 9:00 AM CASE NUMBER: C25-02332
CASE NAME: DYNE WHITMORE VS. ANTIOCH UNIFIED SCHOOL DISTRICT,
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL FOR PLAINTIFF
FILED BY:
TENTATIVE RULING:

Unopposed. **Granted**, based on counsel's declaration that there has been an irremediable breakdown in the attorney/client relationship.

Law & Motion
Add On 3

10. 9:00 AM CASE NUMBER: MSC21-02349
CASE NAME: TAYLOR VS. AMAZON
*HEARING ON MINOR'S COMPROMISE AS TO ROMEO CERNA
FILED BY:
TENTATIVE RULING:

This matter was previously on calendar and granted.